

August 04, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16413
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of packages containing lithium cells and batteries or non-spillable batteries without the markings required in §§ 173.185(c)(1)(iii), 173.185(c)(1)(iv), 173.185(c)(3), and § 173.159a(c)(2) when contained in overpacks and transported via motor vehicle or rail car the locations designated in paragraph 7 of this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that the outside of each package must be marked with the special permit number and §§ 173.185(c)(1)(iii), 173.185(c)(1)(iv), 173.185(c)(3), and 173.159a(c)(2) in that each outer package must be marked, except as provided herein.
5. BASIS: This special permit is based on the application of Amazon.com, Inc. dated February 12, 2020, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries*	9	UN3480	N/A
Lithium ion batteries contained in equipment*	9	UN3481	N/A
Lithium ion batteries packed with equipment*	9	UN3481	N/A
Lithium metal batteries*	9	UN3090	N/A
Lithium metal batteries contained in equipment*	9	UN3091	N/A
Lithium metal batteries packed with equipment*	9	UN3091	N/A
Batteries, wet, non-spillable	8	UN2800	N/A

*Only lithium ion or lithium metal cells or batteries with a Watt-hour rating or a lithium content, as applicable, conforming to § 173.185(c)(1)(i), (ii), or (iv) may be transported under the terms of this special permit.

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Outer packaging: Outer packagings must be rigid packagings that conform to the requirements in § 173.185(c)(2) for lithium cells or batteries and strong outer packagings in accordance §173.159a(c)(1) for wet, non-spillable batteries (UN2800) as applicable.

(2) Overpack: Outer packagings must be secured within an overpack such as within unitized cages or within a rigid container, or secured on pallets.

b. OPERATIONAL CONTROLS:

(1) Transportation is only authorized by contract motor carrier or a common carrier in a vehicle under exclusive use for such service. This requirement does not apply to transportation via rail freight.

(2) Transportation is only authorized for the designated locations as listed in paragraphs 7.b.(2)(i) through (v).

(i) Between the grantee and Amazon.com, Inc.'s distribution centers;

(ii) From distribution centers, retail stores or other entities to Amazon Affiliates;

(iii) Between Amazon Affiliates;

(iv) From Amazon Affiliates to the following:

(A) Retail, wholesale or liquidator/salvage stores or distribution centers;

(B) Charitable organizations or their agents;

(C) Manufacturers or manufacturer agents; or

(D) Other third parties for repair or refurbishment of the product.

(v) Between the entities referenced above or between those entities and Amazon Affiliates.

(3) Packages in an overpack covered under the terms of this special permit must remain within the overpack while in transportation.

c. MARKING: Each overpack covered under the terms of this special permit must be durably and legibly marked and displayed on a background of contrasting color with

(1) The word "OVERPACK", in letters at least 12 mm (0.5 inches) high,

(2) "DOT-SP 16413",

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- (3) The words "Ground Transport Only",
 - (3) The words "This overpack may contain lithium cells or batteries (UN3480, UN3481, UN3090, UN3091) and non-spillable batteries (UN2800)", and
 - (4) Phone number for additional information and emergency response.
8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the overpack is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.
10. MODAL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit; or
 - b. This special permit can be provided by a scannable QR code and URL link on a transport document, such as a bill of lading, provided to the motor carrier.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

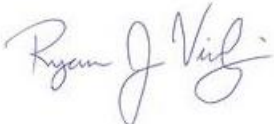
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No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/NICKS/kah